

25PSCV00243 25PSCV00243

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 25PSCV00243 Hearing Date: August 11, 2026 Dept: 6

Plaintiff

Jessica Hernandez's Request for Entry of Default Judgment

Defendants: EveryRoad Services, Inc. and Sergio Enrique Lopez

Ramirez

TENTATIVE RULING

Plaintiff's request for entry of
default judgment is DENIED without prejudice.

BACKGROUND

This is an automobile and
pedestrian accident case. On January 24, 2025, plaintiff Jessica Hernandez
(Plaintiff) filed this action against defendants County of Los Angeles (for
itself and erroneously sued as Los Angeles County Sheriff's Department) (County),
Norasing Ruanthong (Ruanthong), Justin Briley (Briley), Sergio Enrique Lopez
Ramirez (Ramirez), EveryRoad Services, Inc. (EveryRoad) (collectively,
Defendants) and Does 1 through 50, alleging causes of action for negligence
(two counts) and liability of public entities and public employees.

On May 2, 2025, cross-complainant
County of Los Angeles filed a cross-complaint against cross-defendants Justin
Briley, Sergio Enrique Lopez Ramirez, EveryRoad Services, Inc., and Roes 1 to
50, alleging causes of action for equitable indemnification, equitable
contribution, and declaratory relief.

On

February 24, 2026, the Court entered judgment in favor of County and Ruanthong following their motion for summary judgment.

On

March 5, 2026, default was entered against EveryRoad and Ramirez.

On

April 27, 2026, County dismissed EveryRoad, Ramirez, and Briley from the cross-complaint.

On

June 10, 2026, Plaintiff dismissed Briley and Does 1 through 50, and requested entry of default judgment against EveryRoad and Ramirez.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff seeks default judgment against EveryRoad and Ramirez in the total amount of \$1,200,846.21, including \$214,800.50 in special damages, \$750,000.00 in general damages, and \$236,045.71 in interest. The Court finds some problems with Plaintiff's default judgment request. First, Plaintiff presented no documentary evidence to support the amount of damages requested. The declarations submitted are insufficient to prove damages. (See generally,

Yashar Decls.; see Code Civ. Proc., § 585, subd.

(b) [“The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff’s favor for that relief, not exceeding the amount stated in the complaint... as appears by the evidence to be just”]; Cal. Rules of Court, rule 3.1800, subds. (a)(2), (a)(8).) In the context of a request for court judgment by default, evidence to establish liability is not required since a defendant’s failure to answer the complaint admits the well-pleaded allegations of the complaint, and no further proof of liability is required. (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 883.) However, proof of damages is still required. (Id. at p. 884.) Additionally, Plaintiff’s counsel’s declarations provided insufficient information demonstrating that counsel has personal knowledge of the facts set forth therein and otherwise fails to establish foundation. (See generally, Yashar Decls.; see Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 288 [declarations submitted in support of default judgment found to be “useless as evidence” where they were unintelligible and lacked foundation].)

Second, prejudgment interest for torts is 7%, not 10%. (Civ. Code, § 3288; Cal. Const. Art. XV, § 1; Children’s Hosp. and Medical Center v. Bonta (2002) 97 Cal.App.4th 740, 775 [prejudgment interest rate for non-contract claims is 7%]; Los Angeles National Bank v. Bank of Canton (1995) 31 Cal.App.4th 726, 745-746 [7% prejudgment interest rate applies to claims for statutory violations].) Also, the date of the accident is not necessarily the same as the date the amount of damages became certain for purposes of prejudgment interest. (See Yashar Decl. re Interest; Civ. Code, § 3287, subd. (a).)

Third, Plaintiff did not provide copies of the Statements of Damages served on EveryRoad and Ramirez. (See Proofs of Service (12/24/25).) The Court is therefore unable to tell whether EveryRoad and Ramirez received adequate notice of their potential liability.

Fourth, Plaintiff did not complete item 4 on the CIV-100 forms. (CIV-100, ¶ 4.)

Fifth, the

Complaint merely alleges that Ramirez owns EveryRoad, hired Briley, and was present at the scene of the accident. (Compl., ¶¶ 13, 26-29, 44, 62-64.) These allegations are insufficient to impose personal liability on Ramirez. (Meadows v. Emmett & Chandler (1950) 99 Cal.App.2d 496, 498-499, citing Norins Realty Co. v. Consolidated A. & T. G. Co. (1947) 80 Cal.App.2d 879, 883 [“The allegation that a corporation is the alter ego of the individual stockholders is insufficient to justify the court in disregarding the corporate entity in the absence of allegations of facts from which it appears that justice cannot otherwise be accomplished.” [Citation.]”.) “In order to prevail in a cause of action against individual defendants based upon disregard of the corporate form, the plaintiff must plead and prove such a unity of interest and ownership that the separate personalities of the corporation and the individuals do not exist, and that an inequity will result if the corporate entity is treated as the sole actor.” (Vasey v. California Dance Co. (1977) 70 Cal.App.3d 742, 749.) Plaintiff will need to provide evidence showing that Ramirez is not entitled to the protections of limited liability for corporations.

Sixth, paragraph

7 of the proposed judgment against Ramirez indicates \$214,800.50 of the judgment is on a claim related to medical expenses, whereas paragraph 7 of the proposed judgment against EveryRoad is blank. (Proposed Judgments, ¶ 7.) Considering the proposed default judgment requests are otherwise identical, it is unclear why this paragraph is completed on one form but not on another. Further, if Plaintiff can provide evidence supporting personal liability against Ramirez, Plaintiff has not provided any reason why separate judgments should be issued in this case.

Seventh, the

Complaint does not pray for punitive damages. (See generally, Compl.) Plaintiff also does not provide sufficient evidence of willfulness, maliciousness, or oppression warranting punitive damages or EveryRoad’s and Ramirez’s ability to pay punitive damages. (See Civ. Code, § 3294; Cummings Medical Corp v. Occupational Medical Corp. (1992) 10 Cal.App.4th 1291, 1299 [some measure of effect of punitive damages award on deterrence required before punitive damages may be awarded in default judgment; showing of profit from the unlawful transaction may be sufficient].)

CONCLUSION

Based on the foregoing, Plaintiff's request
for entry of default judgment is DENIED without prejudice.